

EU Digital Omnibus Implementation Compact

Day 5B: Necessary Adaptation or Regulatory Retreat?

Setting. The Digital Omnibus has been adopted. The dates in the law are fixed. The European Commission and the Competitiveness Council must now agree on an implementation compact covering guidance, enforcement, coordination, sandboxes, and support before the revised obligations take effect.

Decision Body

An extraordinary EU Competitiveness Council meeting, chaired by the Commission. Industry and civil-society stakeholders participate in the hearing, but the Commission and member-state blocs adopt the final compact.

Roles

1. European Commission / DG CONNECT (chair and package drafter)
2. Pro-innovation member-state bloc
3. Rights-protective member-state and regulator bloc
4. European frontier-model provider
5. European industrial deployers
6. SME and startup coalition
7. Labor and fundamental-rights coalition
8. U.S. technology provider operating in the single market

The Implementation Compact Must Address At Least Four Items

- sequencing and enforcement priorities before the revised high-risk dates;
- SME technical assistance, templates, and compliance subsidies;
- national regulatory sandboxes and cross-border recognition;
- coordination between the AI Office and national authorities;
- treatment of overlap with sectoral legislation;
- transparency rules for synthetic content and public disclosure;
- guidance for general-purpose models and downstream deployers;
- audit, complaint, and fundamental-rights procedures;
- whether the Commission should pledge that there will be no additional delay.

Role Preparation (12 minutes)

Each group must identify:

- its preferred interpretation of the Omnibus;

- two non-negotiable priorities;
- two provisions it can trade;
- one empirical claim from the readings supporting its position.

Simulation Flow (30 minutes)

1. Commission opening and proposed compact: 3 minutes.
2. Stakeholder statements: 1 minute each.
3. Open negotiation: 12 minutes.
4. Commission circulates a revised four-to-six-point package: 4 minutes.
5. Member-state blocs negotiate and announce adoption, amendment, or failure: 5 minutes.

Required Final Decision

The adopted compact must state:

- what compliance burdens are reduced;
- what substantive protections remain enforceable;
- who pays for implementation support;
- how inconsistent national enforcement will be controlled;
- one measurable test of success by 2028.

Debrief

Did the package reduce unnecessary fixed costs, weaken substantive protections, or do both? Which actors successfully converted claims about competitiveness into institutional advantage?